

Plaintiff's request for sanctions is denied. Counsel for the Defendant shall prepare and submit a form of order within two weeks.

5. 25CV02079 NLC CA, INC. ET AL V. WEEKS FOREST PRODUCTS INC

EVENT: Plaintiffs' Motion for Leave to File First Amended Complaint

Plaintiffs' Motion for Leave to File First Amended Complaint is unopposed and is granted and the Court will sign the form of order submitted by the Plaintiffs.

6-7. 25CV03755 CLEANRITE, INC V. WHIPPLE, TIMOTHY ET AL

EVENTS: (1) Demurrer to First Amended Cross-Complaint

(2) Motion to Strike Portions of First Amended Cross-Complaint

The Court finds that the Cross-Complainants Timothy Whipple and Shelly Whipple have sufficiently plead both their Fourth Cause of Action – Fraud and Intentional Misrepresentation and Sixth Cause of Action – Rescission and Restitution, and the Demurrer to the First Amended Cross-Complaint is overruled in its entirety.

In pleading punitive damages, a party must plead facts from which it can be reasonably inferred that the defendant acted with malice, fraud within the meaning of *Civil Code* §3294. "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages . . . Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." *Grieves v. Superior Court* (1984) 157 Cal.App.3d. 159, 166. Here, the Court finds that there are sufficient allegations of fraud and therefore the claim for punitive damages is appropriate. The Motion to Strike Portions of First Amended Cross-Complaint is denied.

Cross-Defendant Cleanrite, Inc. is ordered to file and serve its Answer to the First Amended Cross-Complaint within 20 days of this hearing. Counsel for Cross-Complainants Timothy Whipple and Shelly Whipple shall prepare and submit a form of order consistent with this ruling within two weeks.

8. 25PR00342 ESTATE OF LOPEZ, JAMES M

EVENT: Demurrer to First Amended Petition of Nancy Sandburg

While the Court acknowledges that a demurrer is generally required to be filed within 30 days after service of the complaint pursuant to *Code of Civil Procedure* §430.40, this time limit is not mandatory but permissive, as the statute uses the term "may" rather than "must". See, *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253. Courts have discretion to consider a demurrer filed beyond the 30-day period if doing so does not affect the substantial rights of the parties. *Ibid*. As there has been no argument by Petitioner Nancy Sanburg ("Petitioner" herein) in regard to any prejudice, or impact on

Petitioner's substantial rights, the Court in its discretion declines to overrule the Demurrer as untimely, and has considered the merits of the Demurrer.

In regard to standing, the Court agrees with the Petitioner that Respondent Mariann Youmans, as Administrator of the Estate of James M. Lopez's ("Respondent" herein) standing argument rests on a narrow reading of both *Probate Code* §850 and §48, statutes that California courts have consistently interpreted broadly. See, e.g., *Estate of Myers* (2006) 139 Cal.App.4th 434. On Demurrer, the question is not whether Petitioner is entitled to the relief requested, but whether she has pled sufficient facts to establish she is an interested person, who therefore has standing to proceed with this Petition. The Court finds that the factual allegations of the First Amended Petition are sufficient to establish Petitioner's standing to proceed (see First Amended Petition at ¶¶8, 16-19, 22, 24-26, 28-29, 31), and the Demurrer is overruled on this basis.

Next Respondent argues that even if Petitioner is found to have standing, she has failed to state facts sufficient to support her claim, arguing that the Petition is entirely inconsistent, and inconsistent with the documents attached to it which take precedence over the contrary allegations. There was no "data failure." There was no "data loss". There are no well-pled allegations that Decedent James Lopez designated Petitioner as the beneficiary of his Thrift Savings Plan account. Respondent argues that all of those allegations are contradicted by the documents incorporated into the Petition. However, this argument asks the Court to interpret the documents attached to the Petition in favor of the Respondent and make a factual finding that they do not support Petitioner's claims. The Court cannot do so on demurrer. Additionally, while Respondent cites to *Cook v. Cook* (1941) 17 Cal.2d 639, 644 and *Estate of MacDonald* (1990) 51 Cal.3d 262, 272, for the position that changes to beneficiary designations have strict requirements, the situation alleged here is slightly different. Here, Petitioner does not ask the Court to override a valid designation on file through informal conduct. Instead, Petitioner alleges that Decedent *did* comply with the strict procedural requirements and made a valid designation in Petitioner's favor, which was then lost. The Court finds that the Petition sufficiently alleges a claim under *Probate Code* §850 (see First Amended Petition at ¶¶16-19, 20-27), and the Demurrer is overruled on this basis as well.

The Demurrer is overruled in its entirety. The Court continues the hearing on Petitioner's First Amended Petition from June 23, 2026 to July 8, 2026 at 9:00 a.m. to allow Respondent sufficient time to file a Response thereto. Counsel for the Petitioner shall prepare and submit a form of order consistent with this ruling within two weeks.

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9. **26CV00945 NATIONAL DEFAULT SERVICING CORPORATION V. ALL CLAIMANTS TO SURPLUS FUNDS AFTER TRUSTEE'S SALE OF REAL PROPERTY LOCATED AT 1741 TEHAMA AVENUE, OROVILLE, CA 95965**

EVENT: Joint Motion for Disbursement of Surplus Funds

Pursuant to *Civil Code* §2924j(d), on April 28, 2026, the Court served the required written notice of hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein. That hearing is set for July 22, 2026 at 9:00 a.m. *Civil Code* §2924j(d) provides that "the court shall consider all claims filed at least 15 days before the date on which the hearing is scheduled by the court..." Here, that date is July 7, 2026, so claimants have until that date to submit their claims. As such, any ruling on the instant Motion would be premature. This matter is therefore continued to July 22, 2026 at 9:00 a.m.